

Multiple Choice

1. **Answer:** C

Options: A) No, there are no limits to article 103; B) Yes, Article 103 cannot trump multilateral treaties; C) Yes, article 103 of the UN Charter cannot trump jus cogens norms; D) Yes, when a case is submitted to the ICJ, article 103 ceases to have any effect

Note: Article 103 of the UN Charter, which prioritizes obligations under the Charter over other international agreements, cannot override jus cogens norms, as these are fundamental principles of international law that are universally recognized and cannot be violated.

2. **Answer:** A

Options: A) It distinguishes social rules from mere group habits.; B) It defines the judicial function.; C) It illustrates the authority of the legislature.; D) It stresses the relationship between law and justice.

Note: The 'internal point of view' in Hart's concept of law is crucial because it emphasizes the perspective of individuals who accept and follow social rules as normative guides, thereby distinguishing these rules from mere habits that may not carry the same sense of obligation or commitment within a society.

3. **Answer:** A

Options: A) There is no hierarchy between the formal sources of international law; B) Treaties supersede custom; C) Custom supersedes treaties; D) General Principles of Law supersede both custom and treaties

Note: The correct answer is based on the understanding that the formal sources of international law, such as treaties, customary law, and general principles, operate on a horizontal plane without a hierarchical structure, meaning no single source inherently supersedes another.

4. **Answer:** C

Options: A) Sovereignty means being recognised by all other States; B) Sovereignty means to be able to enter into treaties and join the UN; C) Sovereignty means freedom to determine one's own affairs without external interference; D) Sovereignty means possessing the right to defend oneself

Note: The correct answer captures the essence of sovereignty, which is the inherent authority of a state to govern itself and make decisions independently, free from outside control or influence.

5. **Answer:** C

Options: A) Its aim is to establish certain offences as universal; B) Its aim is to deter the commission of certain international crimes; C) Its aim is to provide jurisdiction to all States in respect of particular crimes; D) Its aim is to provide jurisdiction to all

States in respect of all international crimes

Note: The correct answer is accurate because universal jurisdiction allows any state to prosecute individuals for serious crimes, such as genocide or war crimes, regardless of where the crime was committed or the nationality of the perpetrators or victims, thereby promoting accountability and justice on a global scale.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: Legal positivism asserts that law and morality are distinct and that the validity of a law is not dependent on its moral content, which contradicts the idea of them being inseparable entities.

7. **Answer:** False

Options: A) True; B) False

Note: The Social Fact Thesis asserts that legal systems are deeply intertwined with social influences and forces, suggesting that laws are shaped by societal norms, values, and context rather than operating in isolation.

8. **Answer:** False

Options: A) True; B) False

Note: Social and economic rights are classified as second generation rights in international human rights law, while first generation rights primarily encompass civil and political rights.

9. **Answer:** True

Options: A) True; B) False

Note: A value-neutral definition of punishment is essential to ensure that legal standards are applied consistently and fairly, without bias or subjective interpretation that could lead to discrimination or unequal treatment under the law.

10. **Answer:** False

Options: A) True; B) False

Note: Hobbes argues that peace is achieved through a social contract that establishes a powerful sovereign authority, rather than solely through law and order, which may not be sufficient without the credibility and enforcement power of that authority.

Long Form Response

11. **Answer:** The methods for peaceful settlement of disputes in constitutional law include negotiation, mediation, arbitration, and adjudication, among others. Importantly, there is no established hierarchy among these methods; the choice of which method to employ rests solely with the disputing states. This lack of hierarchy allows states the flexibility to select the approach that best suits their circumstances and interests,

which can lead to more amicable resolutions. However, it also means that the effectiveness of dispute resolution can vary significantly depending on the chosen method and the willingness of the parties involved to engage constructively. Ultimately, the implications for disputing states are profound, as the selected method can influence the outcome of the dispute and the overall relationship between the parties involved.

Note: correct because it accurately identifies the various methods for peaceful settlement of disputes in constitutional law and emphasizes the absence of a hierarchy among these methods, allowing states to choose the most appropriate approach for their specific situations, which can facilitate more effective and amicable resolutions.

12. **Answer:** The principle of 'pacta sunt servanda,' meaning "agreements must be kept," is fundamental to international law as it underscores the obligation of states to adhere to the terms of treaties they have ratified. This principle ensures that parties to a treaty are expected to perform their obligations in good faith, fostering mutual trust and cooperation among nations. By promoting adherence to treaty commitments, 'pacta sunt servanda' not only stabilizes international relations but also enhances the predictability and reliability of legal agreements. Consequently, the expectation of good faith among parties serves as a cornerstone for the effective functioning of international legal frameworks, thus contributing to global order and peace.

Note: The answer correctly identifies 'pacta sunt servanda' as a foundational principle in international law that mandates states to honor treaty obligations in good faith, thereby promoting stability and trust in international relations.